



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

102**CWP-35225-2024****Date of Decision: 07.01.2025****RAJESH KUMAR**

...Petitioner

Versus

STATE OF PUNJAB AND OTHERS

...Respondents

CORAM: HON'BLE MS. JUSTICE LAPITA BANERJI

Present: Mr. Pardeep Kumar, Advocate for the petitioner.

Mr. Brijesh, AAG, Punjab.

LAPITA BANERJI, J. (Oral)

1. In the present writ petition, the order dated 20.02.2024 passed by the Additional District Commissioner has been challenged.
2. Learned counsel appearing on behalf of the petitioner submits that the ADC has cancelled the arms licence of the petitioner with immediate effect since the petitioner was involved in FIR No.106 dated 04.11.2019 initiated under Sections 307 and 34 of IPC and Section 27 of Arms Act, 1959.
3. Notice of motion.
4. Mr. Brijesh, AAG, Punjab, accepts notice on behalf of respondents and submits that the petitioner has an alternate efficacious remedy under Section 18 of the Arms Act, 1959. Without availing of the statutory remedy, he has approached this Court by filing the present writ petition.
5. Heard learned counsel for the parties and perused the material on record.
6. It is true that the petitioner has an alternate efficacious remedy and without availing of the statutory right he has approached this Court. In the circumstances, liberty is given to the petitioner to withdraw the instant petition and approach the statutory authority, in accordance with law.



7. It is made clear that in case, the petitioner approaches the statutory authority within 30 days, from today, the appeal shall be entertained and considered on merits without the issue of limitation being raised.
8. Accordingly, the writ petition being CWP-35225-2024 is disposed of.

(LAPITA BANERJI)
JUDGE

January 07, 2025
Mohit Bishnoi

Whether speaking/reasoned	Yes/No
Whether reportable	Yes/No